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Reply to Flikschuh and Pavlakos

Arthur Ripstein*

I am grateful to Dr Flikschuh and Professor Pavlakos for their thoughtful responses to *Force and Freedom*, and to the editors of *Jurisprudence* for providing me with the opportunity to respond. Both reviews raise many issues, and I will limit myself to what seemed to me to be the most central points of disagreement in my responses. Although there are some points of overlap, the critiques are sufficiently different that I will consider them separately.

I

Flikschuh's review¹ is sympathetic to the main thrust of the argument of *Force and Freedom*, and acknowledges the distinctive role played by each of private right and public right in my interpretation of the Kantian enterprise. Her objections centre around the role of purposiveness in my account of innate right. I find much of what she proposes as a corrective to my view to be plausible, and suspect that I was insufficiently clear in describing what I take to be Kant's position. Against that background, I will try to explain both how I understand Kant's position and, just as important, why I chose the (perhaps misleading) way of formulating it that I did.

Flikschuh does not explicitly endorse Pavlakos's claim that 'innate right is grounded irrespective of the existence of other agents', but asks 'Where exactly is right located: relationally in unavoidable co-existence, or individually in purposiveness?' The question provides its own answer, contained in the very word 'co-existence'. The normative analysis of innate right that I propose is entirely relational. In talking about purposiveness, my concern was solely to characterise the manner in which the human beings who stand in relations of right are able to do so because of features that they have apart from those relations. The universal principle of right guarantees the coexistence of choice between a plurality of persons. In talking about purposiveness, I meant to be filling out the idea of choice,

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¹ Katrin Flikschuh, 'Innate Right and Acquired Right in Arthur Ripstein's *Force and Freedom*' (2010) 1(2) *Jurisprudence* 295–304 (above).

in the sense in which innate right provides for its coexistence. I developed that idea through the idea of using means to set and pursue purposes. The capacity to use means for setting ends is not a normative basis that stands outside of right, which somehow gives right a significance it would not otherwise have; I reject the claim that your innate right to independence is grounded in our capacity for purposiveness. Purposiveness is not an interest, specifiable apart from right, which rights serve to protect. You do not, and could not, have an innate right to set and pursue your own purposes, simply as such. Instead, your innate right is your right to set and pursue your purposes, consistent with the entitlement of others to do the same, that is, that your choice be restricted by the choice of others only under universal law.

Postponing for a moment Flikschuh's concern that I assimilate innate right too readily to property, it seems to me that this structure of a moral relation presupposing a non-moral capacity is somewhat easier to see in the case of property. Property is a relation between human beings, and Kant is explicit that if you were the only human being in the world, you could use things as means to set and pursue purposes, but you would not own them, because property is a restriction on the choice of others. It is also clear that this structure of restraint on the choice of others that governs property builds on the structure of each human being's capacity to use what he calls 'usable objects'. You can acquire things that you can take possession of. Things you cannot take possession of—Kant gives the example of the high seas—cannot be property. In explaining Kant's view of innate right, I took myself to pointing to the same structure of a moral relation presupposing moral capacity. If you were the only human being in the world, you could set and pursue your own purposes, but you would not have any rights, because a right is a restriction on the choice of others. Conversely, only beings who have or will develop the capacity for choice can have rights, because only such beings can have their choices restricted by the choice of others under universal law.

I took it to be important to explain the idea of choice in terms of setting and pursuing purposes, not because it is the normative basis for right, but in order to highlight an aspect of Kant's political philosophy that is otherwise too easy to overlook. The doctrine of right is, in the first instance, exclusively a doctrine of means, and never a doctrine of ends. Virtue requires the adoption of particular ends;² right concerns itself exclusively with the means that people use in setting and pursuing ends. In public right, ends do enter indirectly, but they are never the ends of private persons; rather they are always, exclusively, the ends of the citizens considered as a collective body. But the starting point for the doctrine of right is that it is a doctrine of permissible means; you can pursue whatever ends you wish for,

² It is perhaps worth mentioning that even the mandatory ends of the *Doctrine of Virtue* enter as requirements imposed by a form of reasoning, rather than as ends external to it. Kant does not start with an idea of the value of dignity or humanity and then ask what it requires. He asks what reason requires, and argues that it requires that you make your own perfection and the happiness of others your ends. A parallel argument seeks to establish humanity as an end *from* the Categorical Imperative in the *Groundwork of the Metaphysics of Morals* Ak 4:437, in Immanuel Kant, *Practical Philosophy*, Mary Gregor (trans) (Cambridge University Press, 1996) 86.

restricted only by the requirement that you limit the means you use to those consistent with every other person's right to set and pursue whatever ends he or she wishes for. The restrictions are just the restrictions of each other person's innate and acquired capacities for setting and pursuing ends, that is, their person and property, and any means that they have personally as against you (such as your future contractual performance or fiduciary loyalty).

Much political philosophy is conducted as though questions about means are merely instrumental and incidental; many philosophers still seem to accept Isaiah Berlin's characterisation of the subject as focused on the characterisation and weighing of social goals. The alternatives to ends are sometimes thought to be 'side-constraints' prohibiting particular actions. Kant's picture is fundamentally different; he shows that the systematic characterisation of equal freedom restricts only the means that can be used, and leaves each person free to set and pursue his or her own ends. To introduce the idea of the doctrine of means, rather than a doctrine of ends, I focused on the way in which the capacity for choice is about using means to set and pursue purposes. Flikschuh is correct that the question of what ends or purposes should be pursued is a question of ethics rather than right. My interest was only in drawing attention to the way in which right orders the interaction of beings capable of setting ends for themselves. I did not mean to suggest that that was normatively basic; the relation between the choice of one person and another is basic. That is why I would insist that Flikschuh's contrast between the claim that 'you are entitled to use your own body as you see fit' and 'others may not use it as they see fit' is not a real contrast, but a statement of two correlative ideas, characterised from the two poles of a bipolar relation; your entitlement, like all entitlements of right, is contrastive—it is an entitlement as against others. The relation is irreducible, both in its structure and in its normativity. But the things it relates are beings capable of choice, and that is what I had meant to highlight.

Flikschuh raises a second and, I believe, distinct challenge to my account of innate right. Here her concern is not that it is non-relational but that it is too property-like—that the way in which I characterised innate right comes perilously close to some idea of self-ownership. This might also go some way towards explaining the misimpression she found herself repeatedly correcting, according to which I (or Kant) was some sort of libertarian. My claim is not that people own their bodies. I think that the constraints that your innate right to your person imposes on others are parallel to many of the constraints that a property right imposes on others; the passage she quotes³ is about the way in which each is a right to exclusivity, not about rights to external objects being some sort of extension of your right to your own person. As against others, your body is yours, not in the sense that you bear a special form of self-relation, but rather in the sense that those others are not permitted to touch it without your consent. Flikschuh notes that there may be limitations on the ways in which you can use it—most notably, you cannot alienate it. That undergirds the difference between person and property; you cannot alienate

³ From p 68.

your person, because your person is subject to obligations, which is just to say that you are subject to obligations, and so cannot alienate yourself to another. This is not because you have an ethical duty to yourself, but rather because you cannot both be the property of another and be under an obligation to that person. This inalienability is not an exception to your authority over your body as against others; it is a direct implication of it. Your body is subject to your exclusive choice in the sense that it is subject to the choice of no other, just as you are your own master, not in the sense of a special form of self-relation, but in a contrastive sense of having no other master.

Let me relate this back to the earlier concern that Flikschuh raised about purposiveness. Right restricts the exercise of choice to the conditions of its coexistence under universal law. To say that you have a right to your own body is to say that your body is subject to your choice under this idea of right, that you, to the exclusion of all others, determine what relations you will enter into with them, and so, what they may or may not do to you body. But if others are not entitled to determine what happens to your body, it follows from the relational conception that you are (solely, exclusively) so entitled, because a relational entitlement is always an entitlement as against others. The point is not that there is a special value of some sort in your getting to decide, but rather that the idea of reciprocal restriction of choice under universal law doesn't have any gaps; whatever others are precluded from choosing, you are entitled to choose.

I also didn't mean to suggest that your innate right over your own body is non-relational. Indeed, I'm not sure how Flikschuh arrived at the conclusion that I suppose that it was, given that your innate right is a restriction on the choice of others, that is, it is purely relational. The reason that it figures differently in the argument for public right is that it does not require an affirmative act to establish it; that is the sense in which it is innate. But that means that no argument about the authority to change the normative situation of others is going to apply to it, because no affirmative act is required to establish an innate right. On my interpretation of the assurance argument, it depends crucially on the fact that acquired rights are acquired, so it will not apply to your right to your body. The remaining argument that does apply, from indeterminacy, is not merely prudential; it is a conceptual argument about the requirements of the complete realisation of a set of normative ideas. You cannot enjoy your innate right under universal law except in a public rightful condition, but that is not because having your innate right is an exercise of authority.

This brings me back to the choice Flikschuh presents between unavoidable coexistence and individual purposiveness. It is purposiveness that must unavoidably coexist. That is why I find so much of Flikschuh's corrective to my view to be helpful; my end was to say what she says I ought to have said, and I apologise if I did not use means that were fully adequate to the task.

II

Pavlakos's review⁴ is organised around the fundamental issue of the significance of institutions in Kantian political philosophy. Drawing on Christine Korsgaard's work on the relation between self-constitution and normativity, Pavlakos draws a contrast between a view of institutions as constitutive of obligations, and one that supposes them to merely enable pre-existing obligations. He concludes that *Force and Freedom* has not fully discharged its argumentative burden, because it assigns institutions merely an enabling role, and does not show that they are able to fully constitute normativity. As I understand Pavlakos's challenge, this merely enabling concept of institutions undermines my claim that Kant has a resolutely non-instrumental account of the rule of law and legal institutions. A secondary challenge in Pavlakos's review focuses on the more general issue of the relation between right and ethics, culminating in the suggestion that obligations of right are merely a special case of moral obligation. Related to this second charge is a further issue about coercion.

I will respond to both challenges by casting doubt on the dichotomy that animates them, between a fully constitutive account of political normativity and a merely enabling one. There is an important moral space between something merely enabling the realisation of a moral principle and it fully constituting a principle of its own. Kant's strategy is to show, first, that a certain form of human interaction is morally required, and that, further, that form of interaction is morally impossible in the absence of institutions. Talk of enabling or instantiating is not necessarily out of place here, provided one keeps firmly in mind that the morality of external freedom can only be enabled or instantiated in one way, through legal institutions.

The argument is supposed to establish both the need for specific institutions and the internal norms governing their operation *a priori*, showing that institutions are partly constitutive of right. Any argument to show such a thing necessarily works with a highly developed and specific concept of what an institution is in the relevant sense. It develops a broader juridical conception of one human being acting for another, and applies it to the case of the state, an institution that creates a people—a group of citizens considered as a collective body—by acting on their behalf. This idea that officials act on behalf of the people is inseparable from the ideas of freedom with which Kant begins.

Kant thus rejects both branches of the dichotomy proposed by Pavlakos. Legal institutions can generate novel obligations, and necessarily have moral powers that no private person could have, including the power to resolve disputes, enforce acquired rights, tax, and punish. Those distinctive moral powers reflect the fact that the concept of a legal institution is already morally infused. Kant expressly repudiates the idea that some non-moral concept of an institution, perhaps on analogy with the rules of games such as chess or tennis, could be sufficient for a

⁴ George Pavlakos, 'Coercion and the Grounds of Legal Motivation: A Review of Arthur Ripstein's *Force and Freedom*' (2010) 1(2) *Jurisprudence* 305–16 (above).

class of binding obligations.⁵ Officials acting within institutional roles are subject to moral obligations that follow from the nature of the institutions in which they act, but those obligations reflect the moral nature of the institutions, the fact that they are the precondition of the coexistence of free human beings. It is not constitutive if that is supposed to mean that the state could create a basis for rights that made no reference to the innate right or capacity for acquired rights of its citizens.

Not only does Kant reject the purely constitutive horn of Pavlakos's dilemma; in so doing he also rejects the idea that institutions merely enable the achievement of moral purposes that can be specified without reference to them. Kant also rejects the idea that institutions are a sort of Lockean solution to the 'inconveniences' of a morally complete but empirically unstable pre-legal condition. Instead, a further alternative is precisely the one that Kant proposes: rights are merely provisional in a state of nature. Procedures are required in order to make those rights conclusive and binding by making them omnilateral rather than merely unilateral. The rights do not themselves make procedures valid; the rights make procedures necessary. The procedures make the rights valid, but only because procedures are the only solution to a moral problem.

Kant argues that there is a duty to 'exit' a state of nature and enter into a rightful condition, so that everyone can enjoy their rights. Neither branch of Pavlakos's dichotomy can accommodate such a duty. If institutions generate all of the norms of political obligation, then, until institutions are in place, nobody could be under such an obligation; if institutions merely enable the realisation of rights, there could be no strict duty to create them.

Once Pavlakos's dichotomy is overcome, the role of the omnilateral will in Kant's account becomes clear. It is not to do a large-scale version of what many commentators suppose the individual will does in the *Groundwork* and *Critique of Practical Reason*, to somehow generate normativity out of the possibility of action. If that were the structure of the argument of public right, it would be unable to explain the state's authority. The *Groundwork* type argument is supposed to establish the individual will's ability to put *itself* under obligation, and does not speak directly to the obligations of others. The fundamental question of political authority concerns the ability of the state to place *its citizens* under obligations; if modelled on the idea of individual self-constitution, its ability to constitute itself would at most explain only its obligations to itself.

Instead, both the constitution and the authority of the omnilateral will depend for their normativity on the universal principle of right, as do each of innate and acquired rights, which the omnilateral will secures. Omnilateral willing does not purport to provide citizens with an internal motive for conformity with the require-

⁵ Pavlakos sometimes seems to want something more like this in his concept of a constitutive view, as if something only counted as constitutive if the mere fact of a structured and regular pattern of behaviour, whatever its structure or content, was sufficient to create *moral* obligations. Kant sets a low bar for the moral obligation to obey the law, on the explicitly *a priori* moral ground that human beings cannot enjoy their rights except under positive law. Structure and organisation is not sufficient for moral obligation.

ments of right; it has no relation to twentieth century ideas of collective will formation. Like all requirements of right, its focus is on what people do, not on why they do it; the only incentive it provides is external. As Flikschuh helpfully puts it, the omnilateral will is not a pooling of individual private authority. Neither its form nor its content is reducible to individual wills, but its normative basis is that it secures the rights of its members. It thus both constitutes and enables rightful relations.

The Kantian strategy I have outlined applies straightforwardly to many familiar legal rights, the basis of which is not exhausted by institutions, but that cannot be realised without them. Consider the right to a fair trial. It is not exhausted by the fact that it has been given effect in positive law, and it does not acquire its moral significance exclusively from its legal instantiation. Instead, it is a reflection of each human being's right to be 'beyond reproach'. At the same time, it is not a right that could be enjoyed in the absence of institutions. It is not merely that it constrains the conduct of pre-existing institutions; a trial is an institutional procedure for resolving disputes about rights, and requirements of right generate the need for institutions competent to resolve those disputes in ways that are consistent with right. Again, the familiar legal maxim *sic utere tuo ut alienum non laedas*—use yours in a way that does not wrong another—is a completely familiar moral thought about how neighbours should use their property, but requires positive law to give any guidance about particular situations.

I suspect that a related ambiguity permeates Pavlakos's question of what 'makes it the case that something is a genuine normative reason for action'. Using 'reason' as a count noun increases the ambiguity between a question about how normativity is possible at all, what Korsgaard calls 'the sources of normativity', and a very different question of how one person could put another under an obligation, consistent with the freedom of both. The *Doctrine of Right* focuses on the second, and says nothing about the first. In the Appendix to *Force and Freedom*, I suggest that the Kantian answer to the question of how normativity is possible draws out the implications of the idea that reason answers only to itself. That is not sufficient for the universal principle of right, which requires a further 'postulate incapable of further proof'. The purpose of the argument of the *Doctrine of Right* itself is to show how the universal principle of right is not only consistent with but actually generates the two forms of *dominium* familiar from political life, both 'horizontal' rights through which one person restricts the choice of another, especially in the context of property, and 'vertical' powers through which the state rules over its citizens.

The issue of normativity is one of several places where Pavlakos has sought to relate my account more directly to Kant's ethical writings than I had meant to. In particular, his discussion of the role of reflective endorsement seems to me to import something both too ambitious and too specific to virtue to figure in a doctrine of right. You can wrong someone by interfering with something that they have endorsed unreflectively, or by interfering with something that is neither reflective nor endorsed; you interfere with me if you interfere with my capacity to set and pursue my own purposes, where the sense in which those purposes are my own is just that I rather than you am the one who sets them. Unless I have given you permission

to do so, you wrong me if you take it upon yourself to cure me of a habit that I regard as alien and would on reflection be glad to be rid of, or if you carelessly destroy the substances I use to indulge it. You also wrong me if you touch me while I'm sleeping, even if I dozed off while hoping to stay awake. All of these actions are coercive, because they are restrictions on a person's ability to set and pursue purposes. They are wrongful because they cannot be integrated into a system of equal freedom. Coercion is only wrongful when inconsistent with a system of equal freedom; legitimate coercion is the use of force that is consistent with everyone enjoying the same freedom.

It may be that Pavlakos sees my account as merely enabling because he supposes that Kantian right is ultimately in the service of autonomy as identified in the *Groundwork* or *Critique of Practical Reason*, and so concludes that they could at most be causally efficacious in doing so. His conclusion that 'Kant's account of obligations of right is seen to be only a special case of his general account of moral obligation' overlooks the sequenced nature of Kant's argument. In the Appendix I try to explain the structure of at least some of this sequence. But I take no stand, either here or in *Force and Freedom*, on either whether Kant supposes that human dignity resides in autonomy, or whether it is to be analysed in terms of reflective endorsement, or whether he is or would be correct to do so. My topic is right, which is concerned with the external relation between choices as exercised by a plurality of human beings. I am not allowed to interfere with your capacity to set and pursue purposes, except insofar as doing so is consistent with both of us enjoying freedom in the same ways. The requirements of the coexistence of external freedom provide the normative structure of right, and they cannot be reduced to internal constraints on a rational will. So even if the ultimate normative principle is to be found in reason's own requirements for willing, the universal principle of right does not merely enable a rational will to satisfy its own constraints. In the same way, acquired rights do not merely enable the satisfaction of innate right, and public right does not merely enable the satisfaction of acquired rights.

The idea of instantiating an obligation is, finally, ambiguous. In one sense, the speed limit as set by a public authority is an instantiation of the obligation to interact with others on terms of right. That way of putting things is neither illuminating nor edifying. It's not that there is an obligation, which then needs to be instantiated; instead, there are obligations between human beings, which require that they enter a rightful condition together which has authority that they as individuals lack; the setting of the speed limit instantiates the obligation on the part of a rightful condition to give laws omnilaterally. The same is true of all the other requirements of public right; they constitute a system of equal external freedom, but they matter because freedom does.